



CHAPTER 32.

An Act to make provision for the honour and dignity of the Crown and the Royal Family, and for the payment of certain allowances and pensions; to enable His Majesty to assent to arrangements on behalf of any son of His Majesty being Duke of Cornwall for the payment of certain sums out of the revenues of the Duchy during the minority of the said Duke; and for purposes connected with the matters aforesaid. A.D. 1937.

[10th June 1937.]

MOST GRACIOUS SOVEREIGN,

WHEREAS Your Majesty has been graciously pleased to signify to Your faithful Commons in Parliament assembled that Your Majesty placed unreservedly at their disposal those hereditary revenues which were so placed by Your Predecessor, and that Your Majesty is desirous that competent provision should be made for Her Majesty the Queen in the event of Her surviving Your Majesty, and for Her Royal Highness the Princess Elizabeth and His Royal Highness the Duke of Gloucester, and that provision should be made for Your Majesty's children, other than Her Royal Highness the Princess Elizabeth, corresponding to the provision which the House of Commons have been willing to make in like circumstances in the past:

And whereas Your Majesty has further been graciously pleased to signify Your Majesty's intention,

A.D. 1937. — so long as the Duchy of Cornwall is vested in Your Majesty, to make the said provision for Her Royal Highness the Princess Elizabeth and for His Royal Highness the Duke of Gloucester, and, in so far as the revenues of the Duchy may be sufficient for the purpose, to provide for Your Majesty's Civil List :

Now, therefore, we, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, have freely and voluntarily resolved to make such provision as hereinafter appears for the purposes aforesaid, and we do most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Payment of
hereditary
revenues
to the
Exchequer.
26 Geo. 5. &
1 Edw. 8.
c. 15.

1. The hereditary revenues which were by section one of the Civil List Act, 1936, directed to be carried to and made part of the Consolidated Fund shall, during the present reign and a period of six months afterwards, be paid into the Exchequer and be made part of the Consolidated Fund.

Annual
payment
for the
King's Civil
List.

2. There shall, during the present reign and a period of six months afterwards, be paid for the King's Civil List the yearly sum of four hundred and ten thousand pounds.

Provision for
Her Majesty
the Queen in
the event of her
surviving His
Majesty.

3. In the event of Her Majesty Queen Elizabeth surviving His Majesty, there shall be paid to her during her life the yearly sum of seventy thousand pounds.

Provision
for Her
Royal
Highness
the Princess
Elizabeth
and for His
Royal
Highness
the Duke of
Gloucester.

4.—(1) There shall be paid to Her Royal Highness the Princess Elizabeth during her life the yearly sum of six thousand pounds and, when Her Royal Highness attains the age of twenty-one years, unless there is at that time a Duke of Cornwall living, the additional yearly sum of nine thousand pounds.

(2) There shall be paid to His Royal Highness the Duke of Gloucester during his life the yearly sum of ten thousand pounds.

(3) The yearly sum to be paid to His Royal Highness the Duke of Gloucester under this section shall be in

addition to any sum payable to His Royal Highness by virtue of the provisions of section five of the Civil List Act, 1910. A.D. 1937.

(4) The yearly sum to be paid to Her Royal Highness the Princess Elizabeth under this section shall, until Her Royal Highness attains the age of twenty-one years, be paid to His Majesty as guardian of Her Royal Highness, and shall be applied by His Majesty for the maintenance and education of Her Royal Highness in such manner as His Majesty may think fit.

5.—(1) No payment shall be made under the foregoing provisions of this Act to Their Royal Highnesses the Princess Elizabeth and the Duke of Gloucester in respect of any period during which the Duchy of Cornwall is vested in His Majesty or any period during which the Duke of Cornwall for the time being is a minor, unless the net revenues of the Duchy for the year fall short, as respects the first period, of the total payments which would, but for this subsection, be required to be so made to Their Royal Highnesses for that year, and as respects the second period, of the said sums with the addition of twenty-five thousand pounds, and in the event of such a deficiency the payment to be so made to His Royal Highness the Duke of Gloucester shall not exceed the amount of the deficiency, and the payment to be so made to Her Royal Highness the Princess Elizabeth shall not exceed the amount of the deficiency less the amount of the payment, if any, so made to His Royal Highness the Duke of Gloucester.

Payments
for the
King's
Civil List
and for
Their
Royal
Highnesses
the Princess
Elizabeth
and the
Duke of
Gloucester
to be
reduced
during
certain
periods.

(2) The sum payable under the foregoing provisions of this Act for the King's Civil List shall be subject, in respect of any period during which the Duchy of Cornwall is vested in His Majesty, to a reduction of an amount equal to the net revenues of the Duchy for the year less the sums, if any, which would, but for the last preceding subsection, be payable under the foregoing provisions of this Act to Their Royal Highnesses the Princess Elizabeth and the Duke of Gloucester.

6.—(1) There shall be paid to the trustees hereinafter mentioned as a provision for the benefit of His Majesty's children, other than Her Royal Highness the Princess Elizabeth and the Duke of Cornwall for the time being, a yearly sum of ten thousand pounds in respect of

Provision
for His
Majesty's
younger
children.

A.D. 1937. — each son, other than the Duke of Cornwall for the time being, who attains the age of twenty-one years, and a further yearly sum of fifteen thousand pounds in respect of each such son who marries, and a yearly sum of six thousand pounds in respect of each daughter, other than Her Royal Highness the Princess Elizabeth, who attains the age of twenty-one years or marries :

Provided that the sum payable in respect of any such son or daughter shall cease to be paid in the event of the death of that son or daughter.

(2) The trustees shall hold the yearly sums paid to them under this section in trust for all or any one or more of the children of His Majesty, other than Her Royal Highness the Princess Elizabeth and the Duke of Cornwall for the time being, in such shares, at such times, in such manner and subject to such conditions and powers of revocation (including, if it is thought fit, a condition against alienation) as His present Majesty may by order, countersigned by the First Commissioner of His Majesty's Treasury and the Chancellor of the Exchequer, appoint :

Provided that any such appointment may be varied by another order made and countersigned in like manner.

Power of
His Majesty
to assent to
certain
payments
out of
revenues of
the Duchy
of Cornwall
during
minority of
any future
Duke of
Cornwall,
&c.

7.—(1) Notwithstanding anything in the Duchy of Cornwall Management Acts, 1863 to 1893, or in any other Act or rule of law, it shall be lawful for His present Majesty by order, countersigned by the First Commissioner of His Majesty's Treasury and by the Chancellor of the Exchequer, to assent on behalf of any son of His Majesty being Duke of Cornwall to arrangements whereby during the minority of the said Duke the following payments may be made out of the net revenues of the Duchy, that is to say :—

- (a) payments to Their Royal Highnesses the Princess Elizabeth and the Duke of Gloucester equal to those which, but for the fact that the Duke of Cornwall for the time being is a minor, would be made to Their Royal Highnesses by virtue of the foregoing provisions of this Act, so, however, that in any year in which the net revenues of the Duchy fall short of the said payments with the addition of twenty-five thousand pounds, the payment to be made to His Royal Highness shall

A.D. 1937.

be reduced by the amount of the deficiency, and the payment to be made to Her Royal Highness the Princess Elizabeth shall be reduced by the amount of the deficiency less the sum payable under this Act to His Royal Highness the Duke of Gloucester;

- (b) a payment to the Exchequer computed in each year by applying to the net revenues of the Duchy of Cornwall for the year, reduced by twenty-five thousand pounds, the standard rate of income tax for the year of assessment in which that year ends and the higher rates of income tax (less the standard rate) for the preceding year of assessment which would be applicable in the case of an individual having a total income equal to those net revenues so reduced;
- (c) if the total of the payments made in any year under paragraph (a) of this subsection are less than twenty-five thousand pounds, a further payment to the Exchequer equal to the difference;
- (d) a yearly payment of twenty-five thousand pounds, to be applied in part for the purpose of the maintenance and education of the said Duke of Cornwall and in part for the purpose of paying sums to the trustees hereinafter mentioned to be accumulated by them for the purpose of making provision for any future wife of the said Duke:

Provided that, if at any time the said payments would exceed in the aggregate the net revenues of the Duchy for the year, the sum payable to the Exchequer may, with the consent of the Treasury, be reduced by an amount not greater than the excess.

(2) The payments referred to in paragraph (d) of the last preceding subsection shall, save in so far as any part thereof is made to the trustees therein mentioned, be made to His Majesty as guardian of the Duke of Cornwall and shall be applied by His Majesty for the maintenance and education of the said Duke in such manner as His Majesty shall think fit.

(3) The sums paid to the said trustees shall not be less than such sums as, in the opinion of the trustees, will, with the accumulations thereof, be sufficient to enable

A.D. 1937. — such provision as is specified in the next succeeding subsection to be made therefrom for a future wife of the said Duke, and shall, until in the opinion of the trustees sufficient money has been accumulated to enable that provision to be made, be not less than ten thousand pounds a year.

(4) If the said Duke marries, the trustees shall, out of the income, and to such extent as in their opinion may be necessary or expedient, out of the capital, of the moneys in their hands by virtue of the arrangements make the following provision for his wife, that is to say—

- (a) an income of ten thousand pounds a year during the joint lives of her and the said Duke;
- (b) an income of thirty thousand pounds a year, to commence on the death of the said Duke, for the remainder of her life;

and in particular they may, if they think fit, make that provision in whole or in part by the purchase of an annuity or annuities for her from the National Debt Commissioners or otherwise :

Provided that, if the moneys in the hands of the trustees are not sufficient to enable the provision as aforesaid to be made in full, the provision to be made for her during the life of the said Duke shall have the priority.

(5) On the death of the said Duke or his accession to the Throne any sums then in the hands of the trustees by virtue of the arrangements shall be paid to the Duchy of Cornwall and dealt with in like manner as gross sums of money received in respect of a sale of any of the possessions of the Duchy of Cornwall are to be dealt with under the Duchy of Cornwall Management Acts, 1863 to 1893 :

Provided that on the death of the said Duke the trustees shall retain such part of any moneys in their hands as aforesaid as may in their opinion be required for making such provision as aforesaid for any wife of his who survives him.

8. The provisions of this Act shall, in the event of Her Royal Highness the Princess Elizabeth predeceasing His Majesty, have effect, as respects any period subsequent to that event, as if the references to Her Royal Highness were references to that one of His Majesty's

Provisions relating to Her Royal Highness the Princess Elizabeth to apply in certain circumstances to His Majesty's eldest surviving daughter.

daughters who thereby becomes his eldest surviving daughter. A.D. 1937.

9. The persons who are for the time being the First Commissioner of His Majesty's Treasury, the Chancellor of the Exchequer, and the Keeper of His Majesty's Privy Purse shall be the Royal trustees for the purposes of this Act, and shall be a body corporate by that name, and any act of the trustees may be signified under the hands and seals of the persons who are the trustees for the time being.

Constitu-
tion of
Royal
trustees.

10.—(1) In the application of the sum paid for the King's Civil List, the amounts specified in the Schedule to this Act shall be appropriated to the classes of expenditure specified therein respectively.

Appro-
priation of
the King's
Civil List.

(2) If at the end of any calendar year the sum appropriated to any class of expenditure is not wholly required for expenditure of that class in that year, the Treasury may direct that the amount not required be applied as an addition to the sum available for any other class.

11. The Treasury may undertake the payment of any retired allowances granted, on scales and in accordance with conditions approved from time to time by the Treasury, by His Majesty to or in respect of persons who have been members of the Royal Household.

Payments
by Treasury
in respect
of retired
allowances.

12.—(1) For the purposes of this Act the expression "net revenues of the Duchy of Cornwall" means in relation to any year the sum certified in respect of each year by the joint certificate of the auditor of the Duchy and the auditor of the Civil List to be the surplus in that year of the receipts of the Duchy on revenue account over payments on revenue account.

Meaning
of "net
revenues of
Duchy of
Cornwall."

(2) In determining for the purposes of this section what receipts and payments are to be taken to be receipts and payments on revenue account, the two auditors shall follow the ordinary practice of the Duchy as existing immediately before the first day of January, nineteen hundred and thirty-six, and shall include in their certificate a statement that they have complied with the provisions of this subsection.

A.D. 1937.

—
Charge of
payments
under this
Act.

13. The sums required under this Act for the King's Civil List, for the provision for Her Majesty the Queen, for the provision for Her Royal Highness the Princess Elizabeth and His Royal Highness the Duke of Gloucester, for the payment of the retired allowances payable by the Treasury under this Act, and for the payment of Civil List pensions, whether granted before or after the passing of this Act, shall be charged on and paid out of the Consolidated Fund or the growing produce thereof, and shall be paid at such times and in such manner as the Treasury may direct, and, in particular, effect shall be given to the reductions required by this Act to be made in the sums payable as aforesaid at such times and in such manner as the Treasury may direct.

Adjust-
ments in
respect of
parts of
years.

14. Where any of the yearly payments, or any of the reductions of the yearly payments, mentioned in this Act fall to be made in respect only of a part of a year, such adjustments of and in relation to those payments and reductions shall be made as may in the circumstances of the case appear to the Treasury to be required.

Continuance
of enact-
ments,
commence-
ment,
repeal and
short title.
1 & 2 Vict.
c. 2.

15.—(1) Sections five and six of the Civil List Act, 1837, which relate to Civil List pensions, shall continue to apply during the present reign and a period of six months afterwards, but Civil List pensions shall not be granted as chargeable on the sum paid for the Civil List :

Provided that in the said section five the words "two thousand five hundred pounds a year" shall be substituted for the words "one thousand two hundred pounds a year" in each place where those words occur and that in the said section six the words "thirty-first day of March" shall be substituted for the words "twentieth day of June" in each place where those words occur.

56 Geo. 3.
c. 46.

(2) The Civil List Audit Act, 1816, and all other enactments relating to the Civil List of the last reign and not hereby superseded or expressly repealed, shall continue to apply to the Civil List under this Act, and nothing in this Act shall affect any rights or powers for the time being exercisable with respect to any of the hereditary revenues which are by this Act directed to be paid into the Exchequer.

(3) The provisions made by this Act shall be in substitution for the provisions made by sections one to

[1 EDW. 8. &
1 GEO. 6.]

Civil List Act, 1937.

[CH. 32.]

seven, section ten and subsections (1) to (4) of section thirteen of the Civil List Act, 1936, and for the provision for His Majesty made under section five of the Civil List Act, 1910, and the amounts payable by and to the trustees under the said section five shall be reduced accordingly and the said sections and subsections of the Civil List Act, 1936, shall cease to have effect.

A.D. 1937.

—
10 Edw. 7. &
1 Geo. 5.
c. 28.

(4) This Act shall take effect as from the last demise of the Crown, and such adjustments shall be made as appear to the Treasury necessary for giving effect to this subsection.

(5) This Act may be cited as the Civil List Act, 1937.

A.D. 1937.

SCHEDULE.

Section 10.

Classes of Expenditure.	Sum appropriated. £
I. His Majesty's Privy Purse - - - -	110,000
II. Salaries of His Majesty's Household and Retired Allowances - - - -	134,000
III. Expenses of His Majesty's Household - -	152,800
IV. Royal bounty, alms and special services -	13,200
Total - - - -	<u>410,000</u>

Note.—Effect shall be given to the reductions in the total of the Civil List which are under this Act to be made in respect of periods during which the Duchy of Cornwall is vested in His Majesty by reducing in the first place the appropriations for the expenditure of Class I, and then, if and so far as may be necessary, the appropriations for the expenditure of Class II.

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